



File No.: EXP202302032

## RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on January 12, 2023. The complaint is directed against VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, VODAFONE). The reasons for the complaint are as follows:

The receipt of a commercial call to \*\*\*PHONE.1 on January 5, 2023, from the phone number \*\*\*PHONE.2 for the sale of LOWI products online, despite the line being registered in the general Robinson List since November 2018.

Along with the complaint, the complainant submitted the following documentation:

1. Recording of the commercial call
2. Certificate of registration of the complainant's number in the Robinson List since 2018.
3. Invoice from the operator of the complainant's number.
4. Certificate from Adigital of revocation of calls by VODAFONE ESPAÑA.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to VODAFONE on 02/16/2023, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: On March 23, 2023, a response was received from VODAFONE, making the following allegations:

According to the information available in the Register of Numbering and Telecommunications Operators of the National Commission of Markets and Competition (CNMC), the number (+34) \*\*\*PHONE.2, from which the call for the sale of LOWI products online was made, belongs to the operator SINEASEN, S.L.

According to the information available in the Register of Numbering and Telecommunications Operators of the CNMC, the complainant's telephone line, \*\*\*PHONE.1, is indicated to belong to the operator DIGI SPAIN TELECOM.

The complainant's telephone line, \*\*\*PHONE.1, is listed in the official Robinson list of ADigital and in the internal Robinson list of Vodafone.

However, VODAFONE asserts that the complainant's phone number does not appear in the database of numbers associated with its collaborators for calls made on behalf of Vodafone. Therefore, the respondent concludes that it does not seem possible to relate the receipt of the commercial call to the complainant with VODAFONE.

Additionally, it provides a plan of corrective measures communicated in November 2018 to its collaborators and distributors, to prevent complaints to VODAFONE for commercial calls not directly managed by Vodafone, with the specific instruction to use exclusively the databases provided by Vodafone, whose data has been previously filtered and duly updated with the Robinson lists of both Vodafone and ADigital.

FOURTH: On March 24, 2023, the Spanish Agency for Data Protection proceeded to notify the complainant of the admission of the complaint for processing along with the initiation of procedure AT/00781/2023.

FIFTH: In view of the facts reported in the complaint and the documents provided by the complainant, as well as the facts and documents that this Agency has become aware of, the General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 57.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter

LOPDGDD).

SIXTH: The investigative actions of procedure AT/00781/2023 have reached the following conclusions: It is confirmed that the operator of the originating number of the calls \*\*\*PHONE.2 is SINEASEN, S.L., and from the response to the requests made, it is concluded that the flow of ownership of the telephone line has been:

SINEASEN -> ORBITAL TELEFONÍA -> PHOENIX SOLUTIONS, S.L. -> DIMTEL COMUNICACIONES, S.L.

DIMTEL COMUNICACIONES, S.L. states that the call was made for commercial purposes for the sale of LOWI services, although VODAFONE indicates that they verified that the calling number does not belong to any of their collaborators.

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DIMTEL had a contract for the provision of these services with APPS-MOBILE, as the representative of VODAFONE ENABLER.

SEVENTH: On December 27, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the accused party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 48.1.b) of Law 9/2014, General Telecommunications Law (hereinafter LGTel 9/14), classified as a minor infringement in Article 78.11 of the LGTel.

EIGHTH: The aforementioned initiation agreement was notified with acknowledgment of receipt on 01/03/2024 in accordance with the rules established in LPACAP. The accused party submitted a written statement of allegations on 01/24/2024 in which, in summary, it stated that:

1) VODAFONE has not violated the provisions of Article 48.1.b) of LGTel 9/14, as it included the claimant in Vodafone's internal Robinson list since 2018 and has excluded the claimant's numbering in its commercial campaigns.

2) It attached the existing contract between APPS-MOBILE and VODAFONE, whose object is the in-person channel, which expressly prohibits telemarketing activities by APPS-MOBILE and/or its sub-agents. APPS-MOBILE did not have Vodafone's authorization to carry out the commercial call in question. It is also established in this contract that APPS-MOBILE must convey these instructions to its sub-agents. In this case, DIMTEL provides a service to APPS-MOBILE, which in turn acted as an agent of Vodafone.

3) Vodafone considers that it acted proactively and diligently in detecting the breaches of APPS-MOBILE by terminating the contract between APPS-MOBILE and Vodafone via burofax on April 12, 2023, as a result of the breaches by APPS-MOBILE.

4) It concludes that Vodafone cannot be imposed the sanction proposed by the Agency for the breach of Article 48.1.b) of LGTel 9/14; however, if the AEPD considers Vodafone's infringement, mitigating factors such as lack of intent and Vodafone's diligence in implementing technical or organizational measures for monitoring and auditing the activities of its collaborators should be applied.

5) Finally, it alleges that it had not been allowed access to the file, nor had it been granted an additional period to make the appropriate allegations.

NINTH: The complete file was sent to the accused party on 02/06/2024, with acknowledgment of receipt from VODAFONE on 02/07/2024, granting a new period for allegations starting from its receipt date; however, VODAFONE has not made any additional allegations upon reviewing the complete file.

TENTH: On 04/08/2024, the instructor informs VODAFONE of the opening of a period for the practice of evidence lasting 10 days, and on 04/16/2024, VODAFONE is informed of the requested extension of an additional 5 days.

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FIRST: On 30/04/2024, VODAFONE submits the requested documentation as indicated below, along with a presentation letter and an explanation of the signature panel of the contract between VODAFONE and APPS-MOBILE, clarifying the error regarding the start date of the contract, which is 01/09/2022, and not 01/09/2023, as incorrectly stated in several documents.

1. The original contract between VODAFONE ESPAÑA, S.A.U. and APPS-MOBILE CHANNEL, S.L. CIF: B01975259 ADDRESS: Avda Isaac Newton 14, Nave 2, Poligono Ind. C.P. 11500 del Puerto de Santa María, in Cádiz.

2. Submission of the complete burofax of the contract termination dated 12/04/2024 with APPS-MOBILE CHANNEL, S.L. by VODAFONE, along with the documents evidencing the sending and receipt by the postal service of the indicated burofax.

3. Submission of the list and copies of invoices accounted for and paid by VODAFONE to APPS-MOBILE CHANNEL, S.L. from January 2022 to the present, certified by the accounting unit of VODAFONE.

TWELFTH: In response to the evidence, VODAFONE submitted on 09/05/2024 a CD with the requested invoices to facilitate their search. It also provides a certificate of the copies of 44 invoices accounted for and paid by VODAFONE ESPAÑA, S.A.U. to APPS-MOBILE CHANNEL, S.L. from January 2022 to the present. The invoices from January 2022 to October 2022 correspond to Vodafone Enabler, S.L. from October 2022 to May 2023 to Vodafone España, S.A.U. because in October 2022, it began to absorb the business of Vodafone Enabler, S.L. and became the owner of the Lowi brand.

THIRTEENTH: On 31 May 2024, a resolution proposal was made, proposing the filing of the proceedings against VODAFONE ESPAÑA, S.A.U., with NIF A80907397.

FOURTEENTH: Due to its preliminary nature, the response to the third allegation by VODAFONE, regarding the lack of access to the complete file that could compromise its defense, is addressed first. The AEPD has granted an additional period to Vodafone for access to the complete file, without VODAFONE having made any subsequent allegations once the file was fully known. This allegation is thus considered resolved, having fully guaranteed the right of defense of VODAFONE.

In response to the allegations presented by VODAFONE regarding the initiation agreement, the following should be noted:

1. VODAFONE alleges that the facts refer to a single call on 05/01/2023 to an interested party who, at the time of the events, is not a customer of Vodafone.

In contrast to this argument, it must be stated that a single commercial call against the express and stated opposition of the interested party is sufficient for an infringement to occur. The recorded call for the sale of LOWI products from C/ Jorge Juan, 6

Vodafone's primary objective is to attract new customers for VODAFONE.

2. The allegations regarding DIMTEL are grouped together to facilitate their response. VODAFONE asserts that the AEPD has accepted the claims and evidence provided by DIMTEL without requesting additional information from VODAFONE, directly opening a sanctioning procedure, which is not true because, in fact, the AEPD first contacted VODAFONE on 16/02/2023 for a direct clarification of the complaint.

For the AEPD, DIMTEL's testimony is an additional element of judgment to ascertain who is, in truth, the data controller, in accordance with the provisions of Articles 4 and 28 of the GDPR. In the context of the preliminary proceedings, DIMTEL has informed the AEPD of the existence of a contract, a copy of which has been lost, with APPS-MOBILE, a representative of Vodafone, for the provision of promotional services, including telemarketing, and that, on behalf of APPS-MOBILE, it made the call for VODAFONE's LOWI products.

Based on the information from DIMTEL, the AEPD has been able to verify the existence of the contract for the promotion of VODAFONE products between APPS-MOBILE and VODAFONE, which excludes telemarketing, a contract that both parties have submitted in this procedure. However, the call made by DIMTEL for the sale of LOWI products is evidence of promotional telemarketing actions for VODAFONE.

As a result of the evidence gathered, it is also demonstrated that VODAFONE compensates (...), coinciding with DIMTEL's call on 05/01/2023 to the complainant for the promotion of LOWI products.

3) VODAFONE claims in its defense the non-compliance by APPS-MOBILE and/or its subagents with the express prohibition of telemarketing in the second clause of the contract, given that the contract between the parties aims at promotion through the in-person channel and that DIMTEL and/or APPS-MOBILE would have acted at their own risk, breaching that contract.

In response to this argument, it should be noted that the existence of the submitted and alleged contract does not preclude the existence of other contracts between the parties, whose purpose is precisely telemarketing; in which case, DIMTEL would act as a subagent of VODAFONE for the advertising call that is the subject of this complaint.

In this regard, VODAFONE has provided contradictory information about the year the referred contract began, and to confirm the true legal nature of the contracts, the AEPD has initiated a process of evidence gathering, to first confirm the authenticity of the submitted contract; secondly, requesting the content of the burofax regarding the termination of the contract, and finally verifying the accounting and list of invoices paid by VODAFONE to APPS-MOBILE, to ascertain the true nature of the services actually rendered.

4) VODAFONE claims in its defense its diligence in controlling the agents it hires and submits as evidence the burofax from VODAFONE dated 12/04/2023 to APPS-MOBILE regarding the termination of the contract; the reason alleged for the termination of the contract.

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is the generic breach of the obligation "to act loyally and in good faith in the development of its commercial activity, preventing and avoiding behaviors that affect or may affect the maintenance of clients or may, due to their fraudulent or misleading nature, cause direct or indirect harm to Vodafone." The AEPD considers that VODAFONE was aware of the possible infringement as of 02/22/2023 and refers to the burofax for the termination of the contract dated 04/12/2023, without providing in the initial allegations either the burofax or the delivery receipt. This documentary omission raises doubts as to whether the termination of the contract is due to VODAFONE's knowledge of the initiation of the administrative procedure, and whether the termination is merely a legal self-protection measure, or whether these facts constitute merely circumstantial evidence, with no causal connection between them. Clarifying this point is essential to assess VODAFONE's diligence in the monitoring and auditing efforts claimed regarding the activity of APPS-MOBILE, as well as the value of the burofax for the termination of the contract, as an additional indication of malpractice by APPS-MOBILE, for ignoring the contractual clauses for its own benefit. In the provided burofax, the use of unauthorized channels (such as telemarketing) is not specified as a cause for the termination of the contract.

The certificate of invoices accounted for and paid by VODAFONE confirms the termination of the contract in May 2023, in accordance with the burofax provided for that purpose.

5) VODAFONE requests the dismissal based on the aforementioned; however, in the event that a sanction is imposed, it should be set at a minimum amount in light of the mitigating circumstances of lack of intent, as well as the diligence shown in applying technical or organizational measures for monitoring and auditing the activities of its collaborators. The AEPD considers that the evidence presented demonstrates that there is a contract between VODAFONE and APPS-MOBILE from September 2022, in which both parties exclusively agree on client acquisition through the in-person channel, expressly prohibiting the possibility of telemarketing activities by APPS-MOBILE and/or its

sub-agents. This contract only covers the use of the in-person channel, thus it is not possible to attribute to VODAFONE the responsibility for the call from DIMTEL regarding the telemarketing of LOWI products from VODAFONE.

In the invoices provided by VODAFONE for the services rendered by APPS-MOBILE, the description of the service provided in the invoices as "LOWI contract" is so generic that it neither confirms nor denies the provision of telemarketing services or other channels different from the in-person channel by APPS-MOBILE.

FIFTEENTH: The notification of the proposal to VODAFONE has a receipt acknowledgment dated 06/07/2024, allowing a period of TEN DAYS for VODAFONE to present any defense it deems appropriate and to submit any documents and information it considers relevant, in accordance with Article 89.2 of the LPACAP. VODAFONE has not made any additional allegations.

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From the actions taken in this procedure and the documentation in the file, the following has been established:

#### PROVEN FACTS

- 1) The line \*\*\*PHONE.1 of the complainant is registered in the general Robinson List since November 2018, as well as in the internal list of VODAFONE ESPAÑA.
- 2) On January 5, 2023, the complainant received a commercial call on their line \*\*\*PHONE.1 from the phone number \*\*\*PHONE.2 for the sale of LOWI products online.
- 3) The number (+34) \*\*\*PHONE.2, from which the call for the sale of LOWI products online is made, belongs to the operator SINEASEN, S.L.
- 4) According to previous investigative actions, it has been established that the successive assignments of the telephone line number (\*\*\*PHONE.2), used to make the call, have been: SINEASEN -> ORBITAL TELEFONÍA -> PHOENIX SOLUTIONS, S.L. -> DIMTEL COMUNICACIONES, S.L.
- 5) The call to the complainant was made by DIMTEL COMUNICACIONES, S.L. for commercial purposes to sell LOWI services.
- 6) In the contract dated 01/09/2022, provided by VODAFONE and APPS-MOBILE, VODAFONE entrusts APPS-MOBILE only with the acquisition of clients in person, and this contract does not authorize either APPS-MOBILE or its agents to conduct telemarketing of VODAFONE products.
- 7) The contract has a fixed duration from 01/09/2022 to 31/03/2023 and will be understood to be tacitly extended for a single monthly period, unless expressly notified otherwise by either party at least one month in advance.
- 8) On 04/12/2023, VODAFONE sent a burofax to APPS-MOBILE for the termination of the contract due to breach of obligations.
- 9) On 02/22/2023, VODAFONE received the first request for information from the AEPD regarding the telephone call that is the subject of this complaint.
- 10) 17 of the 44 invoices provided and certified by VODAFONE refer to services rendered under the LOWI contract by APPS-MOBILE between 01/12/2022 and 05/25/2023.
- 11) For the services rendered in January 2023 (the date of the call), APPS-MOBILE submitted invoice no. 26 dated 02/24/2023 (...).

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#### LEGAL GROUNDS

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## Competence

In accordance with the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel 11/22) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing rules shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

## II

### Unfulfilled Obligation

With the call on January 5, 2023, from DIMTEL to the complainant's phone number, the complainant's right not to receive commercial calls would have been violated, despite the complainant's explicit opposition since 2018, recorded in the internal advertising exclusion list of the respondent VODAFONE, as well as in the general Robinson list of ADigital.

The regime of Law 9/2014, General Telecommunications Law (hereinafter LGTel 9/14), applicable to commercial calls, is in effect until June 28, 2023, in accordance with the sixth final provision of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel 11/22):

"The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into force within one year from the publication of this law in the 'Official State Gazette'. Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to oppose receiving unwanted calls for commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right."

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The known facts constitute an infringement for violation of Article 48.1.b) LGTel 9/14, relating to the "Right to the protection of personal data and privacy in relation to unsolicited communications, with traffic and location data, and with subscriber directories" included in Title III, which provides as follows:

"1. Regarding the protection of personal data and privacy in relation to unsolicited communications, end users of publicly available interpersonal communication services based on numbering shall have the following rights:

- a) Not to receive automatic calls without human intervention or fax messages for commercial communication purposes without having given their prior and informed consent for this.
- b) To oppose receiving unwanted calls for commercial communication purposes made through systems other than those established in the previous letter and to be informed of this right."

The right to object is regulated by Article 21 of the GDPR (Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/2016, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data) and Article 23 of the LOPDGDD (Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights).

## III

### Conclusion

The commercial telephone call recorded by the complainant is valid evidence with the essential

elements of the administrative infringement of Article 48.1.b) LGTel 9/14 regarding the right to "oppose receiving unwanted calls for commercial communication purposes...") the complainant has demonstrated the exercise of the right to object as a member of the Robinson list, and it is classified as a minor infringement as specified in Article 78.1) LGTel.

It is established that DIMTEL made the call on January 5, 2023, to the complainant for the sale of VODAFONE's LOWI products. DIMTEL states that the call is the result of its contract with APPS-MOBILE, in its capacity as an agent ("representative") of VODAFONE, but does not have a copy of the contract with APPS-MOBILE, making it impossible to know the exact terms of their agreements. Thus, the existence of a direct or indirect contractual relationship between VODAFONE and DIMTEL for the provision of a telemarketing service is not established.

It is established that there is a contract between VODAFONE and APPS-MOBILE from September 2022, in which both parties exclusively agree on customer acquisition through the in-person channel, expressly prohibiting the possibility of telemarketing activities by APPS-MOBILE and/or its sub-agents.

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In the invoices provided by VODAFONE for the services rendered by APPS-MOBILE, the description of the service provided in the invoices as "LOWI contract" is so generic that it neither confirms nor denies the provision to Vodafone of telemarketing services or other channels apart from in-person services by App Mobile.

The contract available in this procedure only covers the execution of the in-person channel, which does not resolve the possible attribution of responsibility to VODAFONE for the telemarketing call from DIMTEL regarding LOWI products from VODAFONE.

On the other hand, the LPACAP, in its Title 4, CHAPTER I, relating to the guarantees of the procedure, regulates in its article 53, section 2 b, the rights of the interested party in the administrative procedure of a sanctioning nature as follows:

"2. In addition to the rights provided in the previous section, in the case of administrative procedures of a sanctioning nature, the alleged responsible parties shall have the following rights:

b) To the presumption of non-existence of administrative responsibility until proven otherwise."

The presumption of innocence requires the existence of valid evidence regarding all essential elements of the administrative infringement, from which one can reasonably infer the facts, as well as the authorship of the "accused or indicted."

The presumption of innocence applies without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned on the presentation of evidence and a contradictory procedure in which one's own positions can be defended.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption.

In this regard, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction be based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely evaluated by the sanctioning body, must result in an acquittal."

In accordance with the available evidence, it has not been conclusively established that VODAFONE commissioned APPS-MOBILE for customer acquisition through telemarketing.

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Therefore, in application of the principle in dubio pro reo of criminal law and sanctioning administrative law, VODAFONE cannot be attributed responsibility for the described facts beyond a reasonable doubt, which is why an acquittal is proposed in this case.

Thus, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ARCHIVE the proceedings against VODAFONE ESPAÑA, S.A.U., with NIF A80907397, for an infringement of Article 48.1.b) of the LGT, classified in Article 78.11 of the LGT (minor infringement).

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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